

Vula Careers — Sponsorship Agreement (Template)

Attorney review required before use. This is a drafting starting point, not a finished legal instrument. Before sending this to a real sponsor, have it reviewed by a South African attorney — in particular the data protection clause (§7), the limitation of liability (§10), and the POPIA references, given Vula's user base includes minors. This mirrors the same "template, not final" status as `web/privacy.html` and `web/popia.html`.

SPONSORSHIP AGREEMENT

This Sponsorship Agreement ("**Agreement**") is entered into on [DATE] ("**Effective Date**") between:

Vula Career Guide (Pty) Ltd, a company registered in South Africa under registration number 2026/021440/07 ("**Vula**", "**we**", "**us**"), of [registered address];

and

[**SPONSOR LEGAL NAME**], registration number [COMPANY REG NO.] ("**Sponsor**", "**you**"), of [Sponsor's registered address].

Vula and Sponsor are each a "**Party**" and together the "**Parties**".

1. Background

1.1. Vula operates a free WhatsApp-based career-guidance service for South African high school learners, which generates a personalised career profile for each learner based on a RIASEC (interest-based) assessment.

1.2. Vula does not sell or share personal information of learners with third parties. Instead, Vula offers institutions and organisations the ability to **sponsor visibility** of their courses, programmes, or opportunities to learners whose profile and location match, on the terms set out in this Agreement.

1.3. Sponsor wishes to sponsor the display of certain courses/programmes ("**Sponsored Content**") to learners via the Vula service, as further detailed in **Schedule A**.

2. Definitions

2.1. "**Sponsored Content**" means the institution name, course names, course descriptions, required subjects, duration, website, and contact details supplied by Sponsor and displayed to matching learners, as set out in Schedule A.

2.2. "**Learner**" means an end user of the Vula WhatsApp service, being a South African high school learner.

2.3. "**Personal Information**" has the meaning given to it in the Protection of Personal Information Act 4 of 2013 ("**POPIA**").

2.4. "**Sponsorship Term**" means the period set out in Schedule A during which Sponsored Content will be displayed.

2.5. "**Sponsorship Fee**" means the fee payable by Sponsor as set out in Schedule A.

3. Scope of Sponsorship

3.1. During the Sponsorship Term, Vula will display the Sponsored Content to Learners whose RIASEC profile and self-reported city match the criteria agreed in Schedule A (or nationally, if agreed).

3.2. Placement occurs within the WhatsApp conversation when a matching Learner explores a relevant career, and/or in such other placement as agreed in Schedule A.

3.3. **No guarantee of volume or outcome.** Vula does not guarantee any specific number of impressions, Learner contacts, applications, or enrolments arising from the Sponsorship. Matching is algorithmic (based on Learner interest profile and city) and depends on organic Learner volume, which Vula does not control or guarantee.

3.4. Vula retains full editorial discretion over the format, wording, and prominence of how Sponsored Content is displayed, provided it fairly represents the information supplied by Sponsor in Schedule A.

4. Sponsor Obligations

4.1. Sponsor warrants that all information supplied for the Sponsored Content is accurate, current, and not misleading, and that Sponsor has the right to use any logos, names, or course details supplied.

4.2. Sponsor shall notify Vula promptly in writing of any change to course availability, pricing, admission requirements, or other material details reflected in the Sponsored Content.

4.3. Sponsor shall not represent that Vula endorses, guarantees, or is responsible for the quality, accreditation, or outcomes of any course or programme offered by Sponsor.

5. Fees & Payment

5.1. Sponsor shall pay the Sponsorship Fee set out in Schedule A, in the currency and on the schedule stated there (e.g. monthly in advance).

5.2. All fees are exclusive of VAT unless stated otherwise. VAT shall be added at the applicable statutory rate where Vula is a registered VAT vendor.

5.3. Late payment beyond [14] days of the due date entitles Vula to suspend display of the Sponsored Content until payment is received, without prejudice to any other remedy.

5.4. Fees are non-refundable except as expressly provided in this Agreement (e.g. §9.3 in the event Vula terminates without cause).

6. Term & Renewal

6.1. This Agreement commences on the Effective Date and continues for the Sponsorship Term stated in Schedule A.

6.2. Unless either Party gives written notice of non-renewal at least [30] days before the end of the then-current term, the Agreement renews automatically for a further period of the same length, at the then-current Sponsorship Fee (subject to any increase Vula has notified in writing at least 30 days prior).

7. Data Protection & POPIA Compliance

7.1. **No transfer of Learner Personal Information.** Vula does not, and will not, transfer, sell, or otherwise share any Learner's Personal Information with Sponsor under this Agreement. Sponsor receives no Learner names, contact details, assessment results, or any other Learner Personal Information as part of the Sponsorship.

7.2. Any contact between a Learner and Sponsor arising from the display of Sponsored Content occurs solely at the Learner's own initiative (e.g. the Learner independently visits Sponsor's website or contacts Sponsor directly). Vula is not a party to, and accepts no liability arising from, any such subsequent contact or any information a Learner chooses to share directly with Sponsor.

7.3. If Sponsor collects Personal Information directly from a Learner who contacts Sponsor independently, Sponsor is the sole responsible party for that processing and must comply with POPIA in its own right, including in respect of information relating to a child (as defined in POPIA), independently of this Agreement and independently of Vula.

7.4. Sponsor shall not attempt to identify, profile, or re-contact specific Learners through the Vula service, and shall not request that Vula provide any Learner-level data, analytics that could identify an individual Learner, or Learner contact details.

8. Intellectual Property

8.1. Sponsor grants Vula a limited, non-exclusive, royalty-free licence to use Sponsor's name, logo, and the Sponsored Content solely for the purpose of performing this Agreement (including on the Vula marketing site as a sponsor listing, if agreed in Schedule A).

8.2. Each Party retains all right, title, and interest in its own trademarks, logos, and content. Nothing in this Agreement transfers ownership of any intellectual property between the Parties.

9. Termination

9.1. **For convenience:** Either Party may terminate this Agreement on [30] days' written notice to the other.

9.2. **For breach:** Either Party may terminate immediately on written notice if the other Party commits a material breach of this Agreement that is not remedied within [14] days of written notice of the breach.

9.3. If Vula terminates under §9.1 without any breach by Sponsor, Vula shall refund a pro-rata portion of any prepaid Sponsorship Fee for the unused remainder of the then-current term.

9.4. On termination, Vula shall remove all Sponsored Content from active display within [5] business days.

10. Liability

10.1. Nothing in this Agreement limits either Party's liability for fraud, wilful misconduct, or gross negligence, or any liability that cannot be excluded or limited as a matter of South African law.

10.2. Subject to §10.1, Vula's total aggregate liability arising out of or in connection with this Agreement shall not exceed the total Sponsorship Fees paid by Sponsor in the [6] months preceding the event giving rise to the claim.

10.3. Subject to §10.1, neither Party shall be liable to the other for any indirect, special, or consequential loss, including loss of profit, business, or goodwill.

11. Confidentiality

11.1. Each Party shall keep confidential the commercial terms of this Agreement (including the Sponsorship Fee) and any non-public information disclosed by the other Party, and shall not disclose such information except to professional advisors, as required by law, or with the other Party's prior written consent.

12. Compliance with Law

12.1. Sponsor's course/programme content and any related advertising must comply with all applicable South African law, including the Consumer Protection Act 68 of 2008 and applicable advertising codes (e.g. the ASA Code of Advertising Practice), and must not contain content that is false, misleading, or inappropriate for a minor audience.

12.2. Vula may, acting reasonably, decline to publish or may remove Sponsored Content that it believes in good faith breaches this §12 or otherwise risks harm to Learners, without liability to Sponsor, provided Vula gives Sponsor written notice and a reasonable opportunity to remedy the issue where practicable.

13. General

- 13.1. **Entire agreement:** This Agreement (including its Schedules) constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions or agreements.
- 13.2. **Variation:** No amendment is effective unless in writing and signed by both Parties.
- 13.3. **Assignment:** Neither Party may assign this Agreement without the other's prior written consent, save that Vula may assign it in connection with a sale or restructuring of its business, on written notice to Sponsor.
- 13.4. **Force majeure:** Neither Party is liable for delay or failure to perform caused by circumstances beyond its reasonable control.
- 13.5. **Severability:** If any provision of this Agreement is found unenforceable, the remaining provisions continue in full force.
- 13.6. **Notices:** Notices must be in writing and sent to the addresses/emails set out in Schedule A, and are deemed received on the next business day if sent by email.
- 13.7. **Governing law & jurisdiction:** This Agreement is governed by the laws of the Republic of South Africa, and the Parties submit to the non-exclusive jurisdiction of the South African courts.

Schedule A — Sponsorship Details

Field	Detail
Sponsor legal name	[_____]
Sponsor registration number	[_____]
Sponsor contact person & email	[_____]
Sponsorship tier	☐ City Sponsor ☐ National Sponsor ☐ Founding Sponsor
City/cities (if City Sponsor)	[_____]
Institution/course(s) covered	[_____]
Sponsorship Fee	R[_____] per [month/quarter/year], excl. VAT
Payment terms	[e.g. monthly in advance, EFT within 7 days of invoice]
Sponsorship Term	[_____] months, commencing [DATE]
Logo use on Vula marketing site	☐ Yes ☐ No
Notices — Vula	[email/address]

Notices — Sponsor	[email/address]
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Signatures

For and on behalf of Vula Career Guide (Pty) Ltd

Signature: _____ Name: _____ Date: _____

For and on behalf of [SPONSOR LEGAL NAME]

Signature: _____ Name: _____ Date: _____